

EMAIL TEXT EXTRACT

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Date: Mon, 26 Aug 2024 04:39:38 +0000

From: "FOI (NDIS Commission)" <FOI@ndiscommission.gov.au>

To: Rich McLean <richarddrawsstuff@gmail.com>

Subject: RE: Decision Due Date for FOI Request [SEC=OFFICIAL]

Dear Robert

Thank you for contacting NDIS Commission on 24 August 2024.

Making a valid FOI request

If you wish to seek access to documents under Freedom of Information, section 15(2) of the Freedom of Information Act 1982 sets out the requirements for a valid request and states that a request must:

1. Be in writing

1. State that the request is an application for the purposes of the Act

1. Provide such information concerning the document as is reasonably necessary to enable a responsible officer of the agency to identify it; and

2. Give details of how notices under the Act may be sent to the applicant.

At present, your request is not valid as it does not state that the request is an application under the FOI Act and provide information about the specific documents that that you are seeking to access under the FOI.

Next steps

Can you now please respond to this email and confirm that you are making a request for access to the documents you have described under the FOI Act?

Once we have your confirmation that you are seeking access to documents under Freedom of Information processing of your request can commence.

Please let us know if you have any questions or would like to discuss this email.

Kind regards,

Deepika

Freedom of Information Unit

Legal Services and Internal Integrity Division

W: www.ndiscommission.gov.au<<http://www.ndiscommission.gov.au>>

E: foi@ndiscommission.gov.au

[cid:image001.jpg@01DAF7C5.C51BEA90]

The NDIS Quality and Safeguards Commission acknowledges the traditional owners of country throughout Australia and their continuing connection to land, sea and community.

We pay our respects to them and their cultures, and to elders both past and present.

From: Rich McLean <richarddrawsstuff@gmail.com>

Sent: Saturday, August 24, 2024 10:10 AM

To: FOI (NDIS Commission) <FOI@ndiscommission.gov.au>

Cc: Call Recorder Service (Don't Forget to Merge Calls) <richarddrawsstuff@gmail.com>

; MCCARTHY, Maryanne <Maryanne.MCCARTHY@ndiscommission.gov.au>

Subject: Re: Decision Due Date for FOI Request [SEC=OFFICIAL]

Repeat the process

On 9 Jun 2021, at 10:38 AM, FOI (NDIS Commission) <FOI@ndiscommission.gov.au<mailto:FOI@ndiscommission.gov.au>> wrote:

Dear Dr McLean

I hope you are well.

As you know, a decision is due on your FOI request by Monday 14th June 2021. This date is a public holiday. The FOI Guidelines published by the Office of the Australian Information Commissioner note that where a decision falls on a public holiday, the timeframe for notifying an applicant of the relevant decision is extended to the next business day.

As such, a decision will be made on your FOI request on Tuesday 15th June 2021.

The decision will be provided to you either on Tuesday 15th June 2021 or shortly thereafter.

Please do not hesitate to contact me if you have any questions.

Kind regards

Pascal Moussa

Paralegal

Office of General Counsel

<image001.jpg>

P: 02 9942 5726 | E: pascal.moussa@ndiscommission.gov.au<mailto:pascal.moussa@ndiscommission.gov.au>

www.ndiscommission.gov.au<<http://www.ndiscommission.gov.au>>

Your Guide to OGC<<https://qscnet/corporate/generalcounsel/Pages/default.aspx>>

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